

Track 1 — Chapter Build Pass

MPEP Chapter 200 · Types and Status of Applications; Benefit and Priority Claims

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: The Application Family Tree

This chapter covers provisional, continuation, divisional, and CIP applications — genuinely high-yield material that was missing from the original build. The exam likes testing which application type fits a given scenario, and the precise filing-date consequences of each, especially for CIPs.

Rule 1: Provisional Applications (§201.04)

PLAIN ENGLISH

A **provisional application** is a lower-cost, informal filing (no claims required, no oath/declaration required) that establishes a priority date but is **never examined and never itself becomes a patent**. It automatically expires **12 months** after filing (not extendable), so a corresponding non-provisional application claiming its benefit must be filed within that 12 months to capture the earlier filing date.

EXAMPLE

An inventor files a provisional application on January 1 to quickly lock in a priority date before a public disclosure. They must file a non-provisional application claiming benefit of that provisional by the following January 1 (12 months later) — otherwise, the provisional simply expires and its priority date is lost.

QUIZ

Can a provisional application, by itself, ever issue as a granted patent?

- (A) Yes, after 12 months it automatically converts
- (B) No — it's never examined and automatically expires after 12 months
- (C) Yes, if the applicant pays an additional fee
- (D) Yes, but only for design inventions

Rule 2: Continuation Applications (§201.07)

PLAIN ENGLISH

A **continuation application** discloses the same invention as a parent application (no new matter) but with different/narrower or broader claims still supported by the original disclosure, filed while the parent is still pending, and claims the benefit of the parent's filing date. It's typically used to keep pursuing different claim scope after allowance or in response to a restriction requirement.

EXAMPLE

After a parent application issues, the applicant realizes there's additional claim scope worth pursuing that was disclosed but not claimed. Filing a continuation (before the parent issues or is abandoned) lets them pursue those additional claims while keeping the parent's original filing date for priority purposes.

QUIZ

A continuation application must be filed:

- (A) After the parent application has already issued as a patent, with no timing limit
 - (B) While the parent application is still pending
 - (C) Only within 3 months of the parent's filing date
 - (D) Only if the parent was abandoned
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Rule 3: Divisional Applications (§201.06)

PLAIN ENGLISH

A **divisional application** carves out claims to an independent or distinct invention that was disclosed but not claimed (or was restricted out) in a parent application — typically filed in response to a restriction requirement, to pursue the non-elected invention separately while claiming the parent's benefit. Like continuations, it introduces no new matter.

EXAMPLE

After a restriction requirement forces an applicant to elect between claims to a compound and claims to a method of using it, the applicant can file a divisional application to pursue the non-elected method claims separately, while still claiming benefit of the original parent's filing date.

QUIZ

A **divisional application** is most commonly filed in response to:

- (A) A restriction requirement
- (B) A final rejection on the merits
- (C) A Notice of Allowance
- (D) An examiner interview

Rule 4: Continuation-in-Part (CIP) Applications (§201.08)

PLAIN ENGLISH

A **continuation-in-part (CIP)** repeats a substantial portion of the parent's disclosure but adds **new matter** not disclosed in the parent. Claims fully supported by the parent's original disclosure get the benefit of the parent's filing date; claims relying on the newly added matter only get the CIP's own, later filing date — a claim-by-claim determination.

EXAMPLE

A CIP application repeats the parent's disclosure of a device and adds a newly discovered improvement not in the parent. Claims to the original device get the parent's earlier filing date for prior art purposes; claims to the new improvement only get the CIP's own filing date, since that subject matter wasn't disclosed until the CIP.

QUIZ

In a **CIP application**, what filing date applies to a claim that relies on newly added matter not found in the parent?

- (A) The parent's filing date
- (B) The CIP's own filing date
- (C) Whichever date is earlier, automatically
- (D) No filing date can be assigned to such a claim

Rule 5: Priority Claims vs. Benefit Claims — Terminology (§201.11-.13)

PLAIN ENGLISH

"**Priority**" claims (35 U.S.C. §119/365) refer to an earlier **foreign** or provisional application under international/treaty-based priority rules. "**Benefit**" claims (35 U.S.C. §120/121/365(c)) refer to an earlier **U.S.** non-provisional or provisional application in the same family (continuation, divisional, CIP, or provisional-to-non-provisional). The terms are often used loosely in conversation but are technically distinct in the statute and the MPEP.

EXAMPLE

An application claiming an earlier-filed French application uses a priority claim under §119; the same U.S. application additionally claiming an earlier U.S. provisional uses a benefit claim under §119(e) — both may appear together, but they're technically distinct claim types tied to different statutory sections.

QUIZ

A claim to an earlier-filed U.S. non-provisional application in the same family is technically referred to as a:

- (A) A priority claim under §119 only
 - (B) A benefit claim under §120/121
 - (C) A reissue claim
 - (D) A derivation claim
-

Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. An inventor files a provisional application. What must happen within 12 months to preserve the priority date?

- (A) Nothing, it automatically becomes a patent
- (B) A non-provisional application claiming benefit of the provisional must be filed
- (C) The provisional must be amended to add claims
- (D) An oath/declaration must be filed for the provisional itself

2. Which application type is most directly tied to responding to a restriction requirement?

- (A) Continuation
- (B) Divisional
- (C) CIP
- (D) Reissue

3. A CIP adds new matter beyond the parent's disclosure. A claim relying entirely on that new matter gets which filing date?

- (A) The parent's filing date
- (B) The CIP's own filing date
- (C) No filing date until issuance
- (D) The earliest of all related applications automatically

4. Which statutory sections govern "benefit" claims to earlier U.S. applications in the same family?

- (A) §119/365 only
- (B) §120/121/365(c)
- (C) §102(a)(2)
- (D) §112(a)

5. True or False: A continuation application may be filed after the parent application has already issued as a patent.

- (A) True
- (B) False

Memorize This: Key Tests & Terms

- **Provisional**: no examination, no claims required, expires in **12 months** (non-extendable), never itself becomes a patent.
- **Continuation**: same disclosure, different claims, filed while parent is **still pending (copendency required)**.
- **Divisional**: carves out a non-elected invention, classic response to a **restriction requirement**.
- **CIP**: adds **new matter**; claims get the parent's date only if fully supported there, otherwise the CIP's own later date.
- **Priority** claims (§119/365) = foreign/provisional; **Benefit** claims (§120/121/365(c)) = same-family U.S. applications.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: Provisional Applications (§201.04)

Can a provisional application, by itself, ever issue as a granted patent?

Answer: B

Provisional applications are purely a priority-date placeholder — they're never examined and cannot themselves mature into a patent; a timely non-provisional filing is required to capture the benefit.

Rule 2: Continuation Applications (§201.07)

A continuation application must be filed:

Answer: B

Continuations (like divisionals and CIPs) must be filed while the parent is still pending — copendency is a strict requirement for claiming the parent's benefit.

Rule 3: Divisional Applications (§201.06)

A divisional application is most commonly filed in response to:

Answer: A

Divisionals are the standard vehicle for pursuing a non-elected invention after a restriction requirement — the classic trigger for this application type.

Rule 4: Continuation-in-Part (CIP) Applications (§201.08)

In a CIP application, what filing date applies to a claim that relies on newly added matter not found in the parent?

Answer: B

New matter can't retroactively claim the parent's filing date — only claims fully supported by the parent's original disclosure get that earlier date; new-matter-dependent claims get the CIP's own, later date.

Rule 5: Priority Claims vs. Benefit Claims — Terminology (§201.11-.13)

A claim to an earlier-filed U.S. non-provisional application in the same family is technically referred to as a:

Answer: B

Benefit claims (§120/121/365(c)) apply to earlier U.S. applications in the same family; priority claims (§119/365) apply to earlier foreign or provisional applications — a frequently tested terminology distinction.

Chapter Close-Out Quiz

1. (B)

The provisional itself never converts automatically — a timely non-provisional filing claiming its benefit within 12 months is required to preserve the earlier priority date.

2. (B)

Divisional applications are the standard tool for pursuing a non-elected invention following a restriction requirement.

3. (B)

New matter can't reach back to the parent's filing date — claims dependent on newly added CIP matter get only the CIP's own, later filing date.

4. (B)

"Benefit" claims to earlier U.S. family members run through §120/121/365(c); "priority" claims to foreign/provisional applications run through §119/365.

5. (B) False

Copendency is required — a continuation must be filed while the parent is still pending, not after it has already issued.